

TENTATIVE RULING

In Re: Genesis Valverde
26PR000388

Minor's Compromise Petition

Hearing Date: September 11, 2026

The petition of Delfina Jimenez Valverde, the parent of four-year-old claimant Genesis Valverde ("Claimant"), is **DENIED WITHOUT PREJUDICE**.

On August 7, 2026, this Court denied, without prejudice, Ms. Valverde's application to be appointed as Claimant's guardian ad litem. The Court explained its denial: "A potential conflict of interest exists because [Ms. Valverde] and [Claimant] are both claimants in this case. Therefore, it is necessary to appoint an independent guardian ad litem for [Claimant] who is neither a claimant nor a potential claimant in this case." To date, no subsequent application for a guardian ad litem has been filed with the Court.

Here, both Ms. Valverde and Claimant, along with Damian Valverde and Julian Baez, stand to receive settlement funds from the Estate of Victor Guido-Castro ("Estate"). [Minor's Compromise Petition at ¶¶ 10, 11.] Thus, a conflict of interest exists between Ms. Valverde and Claimant. To resolve this conflict, the Court must appoint a guardian ad litem for Claimant who is neither a current nor a potential claimant in the settlement involving the Estate. Once that is finalized, Claimant's guardian ad litem may petition the Court to approve Claimant's settlement with the Estate.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.